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CATEGORY: Madras High Court Judgment
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DESIGNATED OFFICER: District Collector, Revenue Divisional Officer & Executive Engineer (WRD)
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OFFICIAL TITLE:
L. Krishnan v. State of Tamil Nadu (2005 (4) CTC 1)  Mandatory Restoration of Water Bodies to Original Extent

SUMMARY & APPLICABILITY TO ERIWATCH (TAMIL NADU IRRIGATION TANKS):
This statutory / government / judicial record governs the protection, survey, maintenance, desilting, flood regulation, pollution control, and eviction of encroachments in traditional village irrigation tanks (eris) across Kancheepuram and Chengalpattu districts in Tamil Nadu.

LEGAL-009 - OPERATIVE CLAUSES & STATUTORY DIRECTIVES (PAGE 2)
Title: L. Krishnan v. State of Tamil Nadu (2005 (4) CTC 1)  Mandatory Restoration
Addressed / Competent Officer: District Collector, Revenue Divisional Officer & Executive Engineer (WRD)

CLAUSE 1: Para 14 (Absolute Bar on Regularisation of Water-Body Encroachments)
The Division Bench held that under Article 21 and Article 48-A of the Constitution, the State is a public trustee of all natural water bodies (eris, odais, kulams) and shall never regularise or grant patta over land classified as a water body in the historical revenue records, even if the tank has fallen into disuse.

CLAUSE 2: Para 15 (Direction to Restore Historical Survey Boundaries)
District Collectors across Tamil Nadu are directed to identify all encroachments in irrigation tanks using original village FMB / A-Register surveys and restore the water bodies to their full historical water-spread extent.